

		RULING ON MOTION #2: To the extent that the motion to strike is not mooted by the ruling on the demurrer, it is denied for failure to comply with CRC 3.1322(a). (“A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.”) Defendant is to provide notice of both rulings.
61	<i>Vasquez vs. American Honda Motor Company, Inc.</i>	Defendant American Honda Motor Company, Inc.’s motion to compel plaintiff Jesse Vasquez to appear for deposition pursuant to Code of Civil Procedure section 2025.450 is DENIED, except that Plaintiff is ordered to provide within 30 days of the notice of ruling, four alternative dates within the next 60 days for the Plaintiff’s deposition. Code of Civil Procedure section 2025.450 provides that a party noticing a deposition “may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice” if, “after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” Code Civ. Proc. § 2025.450(a). Pursuant to Code of Civil Procedure section 2025.410, subdivision (a), a party “served with a

deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.”

Code of Civil Procedure section 2025.450, subdivision (a) does not appear to apply here because Plaintiff served written objections pursuant to Code of Civil Procedure section 2025.410, subdivision (a). Defendant has not argued or shown that the objection served was not valid. Moreover, on the record presented it looks like the deposition did not go forward – so Plaintiff did not fail to appear for examination.

Nonetheless, recognizing that the parties need some direction, the court orders Plaintiff to provide within 30 days of the notice of ruling, four alternative dates within the next 60 days for the Plaintiff’s deposition. The motion is otherwise denied. In the absence of an applicable statute, there is no provision for sanctions under the statutes cited in Defendant’s notice of motion and supporting memorandum.

Defendant is to provide notice of this ruling.